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FOR YOUR CORRESPONDENCE FILE
STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

Department of Natural Resources

1313 Sherman St., Room 215

Denver, Colorado 80203

Phone: (303) 866-3567

FAX: (303) 832-8106

Bill Owens
GovernorGreg E. Walcher
Executive DirectorMichael B. Long
Division Director

December 17, 1999

Mr. John Lohr
Southdown Co., Inc.
P.O. Box 529
Lyons, CO 80540

RE: Technical Adequacy Review of Technical Revision 001, Lyons Quarry,
Permit No. #M-77-208

Dear Mr. Lohr,

This letter is being written to address issues which need clarification in the technical revision submitted by your company to the Division of Minerals and Geology (DMG) on December 1 (Lyons Quarry, Permit No. #M-77-208). Please address the following concerns prior to the decision due date of December 31, 1999.

- 1) The previous submittals from Southdown Lyons, addressing CKD disposal on the site, are assumed to be included in this technical revision. This includes the June 21, 1999 submittal and the information submitted on September 29, 1999. Please confirm that the information contained in these submittals is to be included in this technical revision.
- 2) Monitoring Program: The monitoring points for sampling for Pond A, as well as the monitoring compliance point for the site (as discussed during our November 24 meeting) must be shown on a map including any necessary well information (depth, method of sampling), should the chosen compliance point be a well. The water quality analysis methods and quality control and quality assurance methods must also be described. Also, please comply with the extra measures suggested by Harry Posey in his review (Attachment 1). This is in accordance with Rule 3.1.7(6) and (7) of the Construction Materials Rules and Regulations.
- 3) No descriptions of the exact installation procedures for the compacted clay/shale layer have been included in the submissions to DMG. Please describe the equipment used, the depth of the soil layers applied, and a general discussion of the methods of reclamation as relates to the mechanics of earthmoving. This is in accordance with Rule 6.4.5(2)(a) of the Construction Materials Rules and Regulations.

Please be advised that this technical revision may be deemed inadequate, and your application may be denied on December 31 unless the adequacy items listed above are addressed to the satisfaction of the Division. If you wish, you may request a revision to extend the decision due date, to allow for more time to resolve these issues. If you have any further questions, please contact me at (303) 866-3567.

Sincerely,

A handwritten signature in cursive script that reads "Christina L. Kamnikar".

Christina L. Kamnikar
Environmental Protection Specialist

Cc: Carl B. Mount, DMG
H. Bruce Humphries, DMG
Harry H. Posey, DMG
Paul Banks, Banks & Gesso
St. Vrain Community Watch Dogs Group

Attachment

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FAX COVER SHEET (Fax # 303-832-8106)

TO: Paul Banks

CO/AGENCY: Banks & Gesso

No. of Pages Sent: 3

FROM: C. Kaminski FAX NO.: 274 - 8329

MESSAGE TO RECIPIENT:

Tech. Adeq. Review, Lyons TR

DATE: 12/19/99

PROGRAM: MINS. ☒ COAL ☐ AML ☐ M. SAFETY ☐

TIME TO BE SENT: ASAP ☒ or NIGHT RATE ☐